

KAVANAUGH, J., concurring in part

sized time and again the “imperative to purge racial prejudice from the administration of justice” generally and from the jury system in particular. *Pena-Rodriguez v. Colorado*, 580 U.S. 206, 221–223 (2017) (collecting cases).

To state the point in simple terms: Why stick by an erroneous precedent that is egregiously wrong as a matter of constitutional law, that allows convictions of some who would not be convicted under the proper constitutional rule, and that tolerates and reinforces a practice that is thoroughly racist in its origins and has continuing racially discriminatory effects?

*Third*, overruling *Apodaca* would not unduly upset reliance interests. Only Louisiana and Oregon employ non-unanimous juries in criminal cases. To be sure, in those two States, the Court’s decision today will invalidate some non-unanimous convictions where the issue is preserved and the case is still on direct review. But that consequence almost always ensues when a criminal-procedure precedent that favors the government is overruled. See *Ring*, 536 U.S. 584; *Batson*, 476 U.S. 79. And here, at least, I would “count that a small price to pay for the uprooting of this weed.” *Hubbard*, 514 U.S., at 717 (Scalia, J., concurring in part and concurring in judgment).

Except for the effects on that limited class of direct-review cases, it will be relatively easy going forward for Louisiana and Oregon to transition to the unanimous jury rule that the other 48 States and the federal courts use. Indeed, in 2018, Louisiana amended its constitution to require jury unanimity in criminal trials for crimes committed on or after January 1, 2019, meaning that the transition is already well under way in Louisiana.

Importantly, moreover, this Court applies a separate non-retroactivity doctrine to mitigate the disruptive effects of overrulings in criminal cases. Under the Court’s precedents, new constitutional rules apply on direct review, but generally do not apply retroactively on habeas corpus review.